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TENTATIVE RULING

August 21, 2026

26SMCV03195 (Money-Walker, et. al.
v. Mandarin Oriental Bodrum, et. al.)

RELEVANT BACKGROUND

On June 11, 2026,
plaintiffs Saliyah Money-Walker (Plaintiff), Brittany Harris, and Allen Hammler
filed their complaint against Mandarin Oriental Bodrum, Golkoy Mahallesi, and
Does 1-2.

This personal-injury
action arose when Plaintiff was allegedly injured in her room at a hotel in
Bodrum, Turkey. The hotel is owned by Asta Cennetköy Turizm Ve Isletmecilik A.S., doing business as Mandarin
Oriental Bodrum, erroneously sued as Mandarin Oriental Bodrum (ACTI). ACTI is a Turkish corporation with its
principal place of business in Turkey. "Mandarin Oriental" uses the trade name
from Mandarin Oriental (UK) Limited, an entity formed and operating in the
United Kingdom, and entered into an Offshore Management Agreement with Mandarin
Oriental Hotel Group Limited (MOHGL), a Hong Kong company.

Plaintiffs allege that
they made their reservation for the hotel through a website while they were in
California. MOHGL operates the website and central reservation system pursuant
to the Offshore Management Agreement. The website provides information
regarding properties throughout the world, permits users throughout the world

to make reservations, and does not target California as a distinct geographic market. (Kutucu Decl., ¶ 11; Barry Decl., ¶ 8.)

INSTANT MOTION

On July 27, 2026, ACTI filed the instant motion to quash. Plaintiffs filed an opposition, and ACTI filed a reply.

DISCUSSION

ACTI's motion is made pursuant to Code of Civil Procedure sections 410.10 and 418.10, subdivision (a)(1), on the grounds that: (1) Plaintiffs did not serve ACTI or any person authorized to accept service on ACTI's behalf; (2) delivery of the Summons and Complaint to Corporation Service Company (CSC), the registered agent of Mandarin Oriental Hotel Company, Inc. (MOHCI), did not constitute service on ACTI; and (3) California cannot exercise general or specific personal jurisdiction over ACTI consistent with constitutional due process.

For the reasons set forth below, ACTI's motion to quash is GRANTED. The Court agrees with ACTI that it is not appropriate to exercise specific jurisdiction over ACTI. The Court finds no basis for jurisdictional discovery as requested by Plaintiff. Given this, the Court need not address ACTI's remaining arguments concerning service.

I. MOTION TO QUASH – PERSONAL JURISDICTION

Code of Civil Procedure section 418.10 provides in part: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion ... (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a).)

When a defendant challenges jurisdiction through a motion to quash, the plaintiff bears the burden of demonstrating by a preponderance of evidence facts justifying the exercise of jurisdiction. (*In re Auto. Antitrust Cases I & II* (2005))

135 Cal. App. 4th 100, 110.) Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (Vons Companies, Inc. v. Seabest Foods, Inc., (1996) 14 Cal.4th 434, 449.)

Personal

jurisdiction may be either general or specific. (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 268-69.) Here, Plaintiff does not contend that general jurisdiction exists. Nor is there any basis to do so for the reasons set forth in ACTI's motion. (See Motion at p. 11:9-25.) The Court therefore need only consider whether specific jurisdiction exists.

B. Specific Jurisdiction

Specific jurisdiction

involves a three-part test in California. "A court may exercise specific jurisdiction over a nonresident defendant only if: (1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the 'controversy is related to or 'arises out of' [the] defendant's contacts with the forum' " [citation]; and (3) " 'the assertion of personal jurisdiction would comport with 'fair play and substantial justice' " " [Citations]." (Pavlovich v. Superior Ct. (2002) 29 Cal. 4th 262, 269.)

1.

Purposeful Availment

"The purposeful

availment inquiry ... focuses on the defendant's intentionality. [citation.]

This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on' his contacts with the forum." (Pavlovich v. Superior Ct. (2002) 29 Cal. 4th 262, 269.) The purposeful availment requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of random, fortuitous, or attenuated contacts or of the unilateral activity of another party or a third person. (Ibid.)

In the context of

internet activity for jurisdictional purposes, the California Supreme Court

adopted the “sliding scale” test set forth as follows:

At one end of the spectrum are situations where a defendant clearly does business over the Internet. If the defendant enters into contracts with residents of a foreign jurisdiction that involve the knowing and repeated transmission of computer files over the Internet, personal jurisdiction is proper. [Citation.] At the opposite end are situations where a defendant has simply posted information on an Internet Web site which is accessible to users in foreign jurisdictions. A passive Web site that does little more than make information available to those who are interested in it is not grounds for the exercise [of] personal jurisdiction. [Citation.] The middle ground is occupied by interactive Web sites where a user can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site.

(Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 274, quoting Zippo Mfg. Co. v. Zippo Dot Com, Inc. (W.D.Pa. 1997) 952 F. Supp. 1119, 1124.)

The “operation of an interactive website does not, by itself, establish express aiming...[b]ut operating a website ‘in conjunction with ‘something more’—conduct directly targeting the forum—is sufficient” to satisfy the express aiming prong.” (Herbal Brands, Inc. v. Photoplaza, Inc. (9th Cir. 2023) 72 F.4th 1085, 1091-1092.) “When the website itself is the only jurisdictional contact, [the] analysis turns on whether the site had a forum-specific focus or the defendant exhibited an intent to cultivate an audience in the forum.” (Ibid.) A non-resident defendant “expressly aimed” its conduct at a forum if, in its regular course of business, it sells physical product via an interactive website and causes that product to be delivered to the forum state. (Id. at p. 1088.)

In Briskin v.

Shopify, Inc. (9th Cir. 2025) 135 F.4th 739, the Ninth Circuit held that “an interactive platform ‘expressly aims’ its wrongful conduct toward a forum state when its contacts are ‘its own choice and not ‘random, isolated, or fortuitous,’[Citation] even if that platform cultivates ‘nationwide audience for commercial gain.’ [Citation].” (Briskin v. Shopify, Inc. (9th Cir. 2025) 135 F.4th 739, 758 overruling AMA Multimedia, LLC v. Wanat, 970 F.3d 120; see also Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054; Jacqueline B. v. Rawls Law Group, P.C. (2021) 68

Cal.App.5th 243 [no basis to exercise specific jurisdiction where law firm operated a website that could be accessed by California residents, but the website did not target California residents specifically and it was plaintiff who first contacted defendants].)

In *Snowney*, the Supreme Court of California found that a Nevada hotel purposefully availed itself of the privilege of doing business in California through its website. (*Snowney*, supra, 35 Cal.4th at p. 1070.) The hotel advertised in California, sent advertising directly to California residents, operated a website that specifically touted the hotel's proximity to California, provided driving directions from California, and derived a significant percentage of its patrons from California. (Id. at pp. 1064–1065.)

Here, Plaintiff argues that specific jurisdiction is appropriate because ACTI operates a hotel in Turkey; contracted with MOHGL for international marketing and advertising concerning that hotel; MOHGL operates the worldwide Mandarin Oriental website and central reservation system; and ACTI's hotel participates in that system and may be reserved through it.

The Court agrees with ACTI that the operation of the website, by itself, is not a sufficient basis to exercise specific jurisdiction, and there is no evidence that ACTI targeted California residents. Plaintiff herself alleges that the website is accessible worldwide and that MOHGL engaged in international marketing and advertising of the hotel. There is no evidence that the website targeted California residents through its advertising or otherwise. Additionally, on the sliding scale, the website occupies a “middle ground” because it allowed Plaintiff to make a reservation and Plaintiff had to reach out to the hotel directly confirms the minimal interactivity of the website. Moreover, Plaintiff's argument that she has significant California residential and professional connections (Opp at p. 4:10-16) does not support her argument that ACTI has sufficient contacts with California.

2. Controversy Arising / Related to Defendant's Contacts with California

To establish minimum contacts for specific jurisdiction, the plaintiff must show

that its claim relates to or arises from the defendant's contacts with the forum. (Ford Motor Co. v. Montana Eighth Judicial Dist. Ct. (2021) 592 U.S. 351, 362.) "A claim need not arise directly from the defendant's forum contacts in order to be sufficiently related to the contact to warrant the exercise of specific jurisdiction. Rather, as long as the claim bears a substantial connection to the nonresident's forum contacts, the exercise of specific jurisdiction is appropriate." (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 452.)

Plaintiff's

claims do not arise out of or substantially relate to any California-based conduct. Again, Plaintiffs allege a physical injury caused by a towel warmer installed and operated in the hotel bathroom in Turkey. (See Complaint.) As ACTI points out, "[n]o alleged website representation, reservation communication, or California advertisement caused the towel warmer to become dangerously hot, affected its placement, removed a warning, or caused the alleged burn." (Motion at p. 16:2-4.) The Court is not persuaded by Plaintiff's argument that "ACTI uses a contracted international marketing and reservation structure to sell access to that same hotel," (Opp at p. 8:2-4) because, again, this does not show any connection between ACTI's conduct and California. Also, Plaintiff admits that, "The presently unknown facts include whether ACTI deliberately cultivates California customers for that hotel service, the economic significance of those California transactions, and ACTI's participation in the commercial structure producing such business."

3.

Jurisdictional Discovery

"In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction." (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.) "A trial court has discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues... [a]ny discovery must be limited to the issue of specific personal jurisdiction based on the required minimum contacts we have identified in this opinion as relevant to the jurisdictional analysis." (Burdick v. Superior Court (2015) 233 Cal.App.4th 8, 30.) The granting of a discovery request "lies in the discretion of the trial court, whose ruling will not be

disturbed in the absence of manifest abuse.” (Goehring v. Superior Court (Bernier) (1998) 62 Cal.App.4th 894, 911, quoting Beckman v. Thompson (1992) 4 Cal.App.4th 481, 487.)

The

Court finds no basis for jurisdictional discovery here. Plaintiff has not demonstrated that discovery is likely to lead to the production of evidence of facts establishing jurisdiction. Plaintiff has failed to provide any evidence whatsoever to suggest that ACTI has purposefully availed itself of California or directed suit-related conduct toward California, as opposed to an international audience and the operation of a universally accessible website.

Based on the foregoing, ACTI's motion to quash service of summons for lack of personal jurisdiction is GRANTED.